

time read from it the particular terms of the trust (*i*). When the trust is manifested and proved by letters, parol evidence may be admitted to show the position in which the writer then stood, the circumstances by which he was surrounded, and the degree of weight and credit to be attached to the letters, independently of any question of construction (*j*).

4. **The writing must be signed.**—It will be observed, that the words of the statute require the writing to be *signed* (*k*); and not only the fact of the trust, but also the terms of it, must be supported by evidence under signature (*l*); but, as in the analogous case of agreements under the fourth section of the Act (*m*), the terms of the trust may be collected from a paper \*not signed, provided such paper can be clearly connected with, and is referred to by, the writing that is signed (*a*).

5. **Who is the party “enabled to declare the trust.”**—The signature must be by the party “who is by law enabled to declare such trust.” It has been occasionally contended, that by this description was meant the person seised or possessed of the *legal estate*; but it has been decided that whether the property be real (*b*), or personal (*c*), the party

(*i*) *Freeman v. Tatham*, 5 Hare, 329.

(*j*) *Morton v. Tewart*, 2 Y. & C. Ch. Ca. 67, see 77.

(*k*) See *Denton v. Davies*, 18 Ves. 503.

(*l*) *Forster v. Hale*, 3 Ves. 707, per Lord Alvanley; *Smith v. Matthews*, 3 De G. F. & J. 139.

(*m*) See Sug. Vend. & Purch. 14th ed. ch. 4, s. 3.

(*a*) *Forster v. Hale*, 3 Ves. 690.

(*b*) *Tierney v. Wood*, 19 Beav. 330; [*Kronheim v. Johnson*, 7 Ch. D. 60; *Dye v. Dye*, 13 Q. B. D. 147.] see *Donohoe v. Conrahay*, 2 Jones & Lat. 688.

(*c*) *Bridge v. Bridge*, 16 Beav. 315; *Ex parte Pye*, 18 Ves. 140, &c.

*Baptist Church v. Presb. Church*, 18 B. Mon. 635; *Gilbert v. Sutliff*, 30 Ohio St. 129; by indorser of draft against consignee of goods; *Bank v. Gardner*, 15 Gray, 302; by a new administrator against the old; *Scott v. Searles*, 7 Sm. & M. 498; by *cestui que trust* against trustee after death of grantor; *Tritt v. Crotzer*, 13 Pa. St. 451; by a *cestui que trust* with a vested interest, but not an immediate right of enjoyment; *Cooper v. Day*, 1 Rich. Eq. 26; against all persons in possession with notice of the trust; *Lathrop v. Bampton*, 31 Col. 17; *Shibla v. Ely*, 6 N. J. Eq. 181.

Trusts will not be enforced by one having mere possibility of becoming a beneficiary; *Female Asso. v. Beekman*, 21 Barb. 605; or by one tainted with fraud in acts from which trust arose; *Tipton v. Powell*, 2 Cold. Tenn.